

IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA,
Plaintiff,

v.

TAYLOR SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]
JUDICIAL DISTRICT: South Central Judicial District

PETITION TO SEAL CRIMINAL RECORDS PURSUANT TO N.D.C.C. CHAPTER 12-60.1

STATUTORY AUTHORITY

N.D.C.C. Chapter 12-60.1 — Conviction sealing under N.D.C.C. § 12-60.1-02: a misdemeanor conviction (guilty plea or finding) may be sealed with no new conviction for at least 3 years before filing; a felony conviction with no new conviction for at least 5 years before filing; and an unconditional gubernatorial pardon can support a sealing petition.

N.D.C.C. § 12-60.1-02 — For a conviction-sealing petition the petitioner must prove, by clear and convincing evidence, good cause, that the benefit to the petitioner outweighs the presumption of openness, completion of all imprisonment and probation, payment of all restitution, and that reformation/rehabilitation warrants relief.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Burleigh County, North Dakota, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Burleigh County, North Dakota.

II. PARTIES

3. Petitioner is Taylor Sample, whose address is 1234 Example Street, Bismarck, ND 58501.

4. Plaintiff is the State of North Dakota.

5. Petitioner has also been known as: Taylor Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 02/01/2019, Petitioner was charged with Theft of property by Bismarck Police Department.

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. On 06/01/2019, the matter was resolved with the following disposition: Convicted (guilty plea).

9. The offense grade was: Class C felony.

IV. ELIGIBILITY ALLEGATIONS

10. Petitioner may be eligible for sealing on the following basis: Felony conviction sealing under N.D.C.C. Chapter 12-60.1 — no new conviction for at least 5 years before filing.
11. Felony conviction sealing under Chapter 12-60.1: no new conviction for at least 5 years before filing.
12. All terms of imprisonment and probation are complete and all restitution has been paid.
13. Petitioner must prove the sealing factors by clear and convincing evidence.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the sealing of the criminal record (court and prosecution records) in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Taylor Sample, verify that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Taylor Sample
1234 Example Street, Bismarck, ND 58501

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Serve the petition and proposed order on the prosecuting attorney; the prosecutor is expected, to the extent practicable, to notify and seek input from law enforcement, witnesses, victims, and correctional authorities.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY ADDRESS — CONFIRM WITH CLERK OF COURT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

Taylor Sample

Date: _____

PROPOSED ORDER

IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA v. TAYLOR SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Clerk of the District Court and the prosecuting attorney, Bismarck Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Proposed Order to Seal Criminal Records
- Proof of Service on the prosecuting attorney

Prepared by petitioner using LegalEase RCAP. This is not an official court form.